

POWELL, J., delivered the opinion of the Court, in which BURGER, C. J., and STEWART, BLACKMUN, and REHNQUIST, JJ., joined. WHITE, J., filed an opinion concurring in the judgment, in which BRENNAN and MARSHALL, JJ., joined, *post*, p. 432. STEVENS, J., took no part in the consideration or decision of the case.

Roger S. Hanson argued the cause and filed a brief for petitioner.

John P. Farrell argued the cause for respondent. With him on the brief was *John H. Larson*.

Solicitor General Bork argued the cause for the United States as *amicus curiae*. With him on the brief were *Acting Assistant Attorney General Keeney*, *Deputy Solicitor General Friedman*, *Harry R. Sachse*, and *Jerome M. Feit*.*

MR. JUSTICE POWELL delivered the opinion of the Court.

The question presented in this case is whether a state prosecuting attorney who acted within the scope of his duties in initiating and pursuing a criminal prosecution is amenable to suit under 42 U. S. C. § 1983 for alleged deprivations of the defendant's constitutional rights. The Court of Appeals for the Ninth Circuit held that he is not. 500 F. 2d 1301. We affirm.

I

The events which culminated in this suit span many years and several judicial proceedings. They began in

**Evelle J. Younger*, Attorney General, *Jack R. Winkler*, Chief Assistant Attorney General, *S. Clark Moore*, Assistant Attorney General, and *Russell Iungerich* and *Edward T. Fogel, Jr.*, Deputy Attorneys General, filed a brief for the State of California as *amicus curiae* urging affirmance.

Joseph P. Busch and *Patrick F. Healy* filed a brief for the National District Attorneys Association as *amicus curiae*.